

Whangarei District Council Meeting

Supplementary Agenda

Date: Thursday, 26 June, 2025

Time: 9:00 am

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

6. Decision Reports / Whakatau Rīpoata**6.14 *Proposed Northern Rescue Helicopter Limited Agreements*****3**

6.14 Proposed Northern Rescue Helicopter Limited Agreements

Meeting: Whangarei District Council
Date of meeting: 26 June 2025
Reporting officer: Tony Collins – Manager District Development

1 Purpose / Te Kaupapa

For Council to consider Agreements at Whangarei District Airport to Northern Rescue Helicopter Limited for the purposes of operating a rescue helicopter service.

2 Recommendations / Whakataunga

That the Council:

1. Approves lease and standalone agreements with Northern Rescue Helicopter Limited, as outlined within this report.
2. Approves staff Undertaking any final negotiations with Northern Rescue Helicopter Limited necessary to finalise the terms of the agreements
3. Authorise the Chief Executive to finalise and execute all Agreements.
4. Notes that Northern Rescue Helicopter Limited is responsible for ensuring compliance with all applicable legislative and regulatory requirements, including those under the District Plan and the Resource Management Act 1991.
5. Notes that these decisions do not limit or fetter Council's discretion in relation to any future lease matters, renewals, or operational arrangements.

3 Background / Horopaki

In October 2021 Council received a request from Northland Emergency Services Trust (NEST) to relocate to Onerahi Airport. On 11 November 2021, Council resolved in an Extraordinary Council Meeting to support in principle the relocation of NEST to Whangarei District Airport, with the Chief Executive delegated to undertake lease negotiation and execution. Alongside this Council resolved to investigate the establishment of an Airport Noise Management Committee (ANMC) and undertake engagement with the affected communities. Since this time, there have been organisational changes within the helicopter rescue services in New Zealand, resulting in the formation of Northern Rescue Helicopter Limited (NRHL), which has amalgamated NEST and Auckland Rescue Helicopters into a single operational entity. For consistency within this report the acronym NHRL will be used.

Following the initial in principle decision the ANMC was reestablished, with significant work being undertaken on the practicable options for reducing the potential noise impacts of NRHL should they relocate to the Airport. This culminated in a suite of recommendations being

presented to the ANMC for consideration in September 2022. Recommendations adopted by the Committee were presented to Council for consideration later that month, with all ANMC recommendations being adopted. Just prior to the September 2022 Council meeting Judicial Review proceedings were commenced by SOUND. As a result of those proceedings substantive lease discussion were paused, with negotiations not recommencing in earnest until 2024.

This Agenda updates Council on key developments since that time before providing an overview of how the adopted recommendations of the ANMC have been incorporated into proposed agreements with NRHL. It will then briefly discuss ongoing work of the ANMC before outlining proposed agreements for the consideration of Council.

4 Discussion / Whakawhiti kōrero

Since recommencing lease negotiations there have been a number of developments. In late March 2025 NRHL met with Council, advising that it was exploring plans to establish a new purpose-built base at an alternative location in Whangarei. At an April 2025 Briefing the ANMC was advised of this, noting that the proposal was in its early stages. At the same meeting a Community Member of the ANMC read a formal statement from the solicitors for a new community group (ECHO), notifying the Committee/Council that further proceedings had been prepared and would be lodged with the Environment Court imminently. The investigation of an alternative site was subsequently confirmed with ECHO in a formal letter from Health New Zealand dated 28 May 2025 (Attachment 1). The letter was formally provided to the ANMC on 03 June 2025, having been informally distributed to the Committee in advance of the meeting. On the morning of that meeting Council received notification that ECHO had lodged further proceedings with the Environment Court.

The Judicial Review proceedings had directly concerned decision making related to the lease, which is why lease negotiations paused until those proceedings had been resolved. Where those proceedings strayed into matters more appropriately considered within the Environment Court the Judge declined to rule on them. However, the Judicial Review proceedings did confirm that certain obligations under the RMA relating to noise, notably those under sections 16 and 17, sit with the occupier (in this case the lessee) of the land. The current Environment Court proceedings, which are noted here for completeness, relate to historic processes used to update the rules within the Airport Designation, and the resulting rules ECHO consider should apply to airport users. They do not affect Council's ability to enter into a lease for the airport land in its capacity as an Airport Authority. The proposed lease and standalone agreement make clear that NRHL, as the occupier, is solely responsible for ensuring compliance with all applicable planning requirements, including those under the District Plan and the Resource Management Act 1991. Any approvals sought by NRHL would need considered in Council's capacity as an independent regulator, ensuring a clear separation from Council's role as an Airport Authority.

NRHL have now indicated that they are 'working closely with the Crown to explore funding for the future base but need to allow sufficient time for the Crown to undertake its negotiation, due diligence, and approval processes, with the practical timeline to relocate from Onerahi to a new base likely being towards the end of 2027'. NRHL have indicated that they are seeking to relocate to Onerahi in June 2025 so that new/larger helicopters can be housed, and services can continue to be provided from Northland. Alongside a potentially temporary relocation to Onerahi they are proposing to undertake fleet maintenance at their current Kensington base. It is noted that for that to occur an extension to the lease at Kensington would be required, which will be brought back to Council as a separate matter/process.

While the proposal is now for a 10 year lease at Onerahi Airport, with there being a commitment from NRHL's funders to explore a new purpose built base at an alternative

location, there is currently no confirmed funding for that base. As such any leases at Onerahi must be considered on their merits taking into account the full term of the lease. In that regard it is important to acknowledge the extensive work of the ANMC which resulted in the standalone agreement that has been prepared to accompany the lease. The standalone agreement was developed to address commitments made by NRHL to reduce noise and consider community concerns. It is a direct result of recommendations passed by the ANMC, and subsequently adopted by Council, in September 2022. As such it provides a mechanism to address these matters whether a lease is only needed for a temporary relocation or for the full 10 year period.

However, given the change in circumstances, and to ensure full visibility, the proposed agreements are being brought back to Council for consideration prior to execution. In doing so staff will briefly work through how the recommendations of the ANMC have been incorporated within proposed agreements, and the work done through the Committee since those recommendations were adopted, before summarising the proposed agreements for consideration of Council.

4.1 Recommendations of the ANMC

In updating Council it is important to cover the extensive work and recommendations of the ANMC. The ANMC recommenced with an initial overview and direction from the Committee in July 2022. At the meeting, and through subsequent correspondence, staff noted a number of areas raised by the Committee for further discussion. These included:

- A need to work through the contours including the potential noise impacts of NEST having regard to:
 - Differences between standards
 - Site options considered at the airport
 - Potential changes to operations (i.e. removing training) to minimise noise
 - Potential mitigation measures
- A desire to understand enforceable mechanisms that can be put in place either through the lease, or through other requirements
- A desire to understand relative noise levels in other urban areas
- The need for a 'page turn review' of the 2009 Airport Noise Management Plan

At the July 2022 meeting the Chair suggested a Briefing for the Committee to informally work through these topics, before landing on options/recommendations that the Committee may want to consider in its September 2022 meeting.

In August 2022 the Committee had an informal 'breakout session'. In that meeting Committee members worked in smaller groups to consider contours/potential noise impacts, along with potential options/recommendations. Options and recommendations were worked through collectively, with experts (notably Marshall Day) and staff available to provide feedback/answer any questions. From that session the Committee generated a list of feasible options for further Investigation. These included:

1. Requiring the removal of NRHL training from the Airport (as identified in the NRHL training manual)
2. Reviewing all operational assumptions (i.e. taxiing to the runway, take off and flight paths) to ensure the best noise profile is achieved
3. Looking at the crossover of flights with the Westpac Rescue Helicopter service, and any other means of patient transfer, to determine whether night flights could be reduced
4. Investigating effective hard screening options on site

5. Undertaking further work around homes likely to be affected (particularly for sleep), along with mitigation options/costs
6. Investigating performance/compliance mechanisms that could be included in any new lease
7. Reviewing the Airport Noise Management Plan

Investigation of these options was then completed, with resulting recommendations being brought back to the Committee for consideration in September 2022, these included:

- The removal of all NEST training flights (as identified within the NEST training plan) from the Airport
- Advocacy positions being established in relation to the centralised co-ordination of flights, and for the timing and investment of new aircraft
- The need for a standalone agreement with NEST should it relocate to the airport
- Council working with the Airport Noise Management Committee to update the Noise Management Plan
- Working with the Committee to develop a communications plan and/or education programme.

Recommendations passed by the Committee were adopted unchanged by Council at its meeting of 22 September 2022, For completeness Council Agenda paper and Corresponding minutes have been included as Attachment 2.

4.2 Ongoing work of the ANMC

As indicated above Judicial Review proceedings were lodged by SOUND just prior to the recommendations of the ANMC being considered by Council in September 2022.

Substantive lease discussions were largely on hold until those proceedings were resolved, recommencing in earnest in 2024. In April 2024 the ANMC also reconvened. Since that time it has worked through:

- Committee dynamics, adopting principles for working
- A Committee workplan (adopted)
- A complaints policy and escalation process (endorsed)
- A review of the Airport Noise Management Plan, with a draft which received general support being finalised for adoption
- A community survey, which is now being worked through for implementation
- Flight and noise monitoring technologies, with options being investigated for reporting back to the Committee
- The 2024 biennial noise compliance contours (noted)
- Updates on the NRHL lease, including the outcomes of engine testing modelling (note, NRHL are no longer proposing to relocate maintenance and testing) and the NRHL Fly Neighbourly Programme (programme included as Attachment 3)
- Clarifying formal reporting and feedback loops
- A community engagement plan

A more detailed overview of key initiatives is provided in Attachment 4. Alongside these initiatives the Committee has received a public speaker from the community, and received a Discussion Paper from one of its community members. The discussion paper was extensive with the significant work by Warwick Taylor acknowledged and appreciated by the Committee. Given the extensive nature of the paper, and the detailed nature of some of the suggestions, the paper and analysis was broadly categorised under three areas within the covering Agenda, those that are:

- Already incorporated / being worked through

- Under Investigation
- Outside the role of the Committee

The detailed analysis from staff was presented to the ANMC for consideration on 03 June. In considering relevant to the NRHL lease it was noted that:

The lease and operational agreement negotiated with NRHL directly incorporate recommendations of the Committee that were subsequently approved by Council. These are now ready for execution. It is not considered reasonable to seek different/additional requirements of NRHL at this late juncture, acknowledging the negotiation of lease terms is also outside of the Terms of Reference for this Committee.

At the meeting feedback and direction was sought on the Discussion Paper, and associated staff analysis. No further recommendations were put forward by the Committee.

4.3 Proposed Lease and Standalone Agreement

The proposed lease (Attachment 5) is for a single 10-year period. When NRHL first approached Council to establish a base at the airport, it was intended that this would be their permanent base for however long the airport continued to operate at Onerahi. However, the establishment of a permanent presence at Onerahi would require significant investment to develop the infrastructure necessary to operate a rescue helicopter service. As indicated above, and outlined in the attached letter from Te Whatu Ora, the Crown has acknowledged the challenges at both Kensington and Onerahi indicating that it is now working with NRHL on a long term alternative for a new base. However, funding has not yet been confirmed and the lease must be considered on a 10 year basis at this point.

The operational lease is for an area approximately 3400m² more or less and containing the “Blue Hangar” owned by NRHL and the old Air Training Corp (ATC) building (delineated by the red dashed line in the below photograph). This is a reduced area from that previously proposed for a new purpose built base, with NRHL indicating that they will not be able to undertake full operations from this area/these buildings going forward. Within the figure below the red dotted oval denotes the location of the control tower, as referred to later in this report.



Broad terms of the Lease include:

- Commencement date to be determined upon signing with an annual rent of \$1.00 per annum plus GST.
- The lease is for a term 10 years although the term could be less if NRHL confirm central government funding and ascertain the time required to build their new base.
- The agreement includes a clause addressing the enforceability of Airport Noise Management Committee recommendations that have been included within the standalone agreement.
- The standalone agreement (Attachment 6) includes key NRHL commitments to reduce noise (i.e. the removal of specified flight training from the airport, flight abatement procedures etc), consider community concerns and engage with the Airport Noise Management Committee. NRHL have completed a proposed Fly Neighbourly Plan (Attachment 3) for Whangarei District Airport.
- Terms providing for the relocation NRHL if the airport were to relocate.
- Noise shielding requirements in line with those recommended by acoustic engineers Marshall Day (Attachment 7).

In terms of shielding requirements it is noted that temporary shielding (likely to be containers) is proposed in line with advice received by Marshall Day. Conditions/operational matters are still being negotiated to enable review of shielding, accommodate construction of the Rescue Fire Service building and require more permanent shielding should NRHL not confirm an alternative base. These clauses, and other clauses where further feedback has to date been received from NRHL, are highlighted in the attached lease document and standalone agreement. As indicated above this feedback predominantly relates to the application of the shielding clauses, with other feedback largely being matters requiring clarification. Staff will keep working with NRHL on these and any other matters raised, with a view to providing a verbal update at this meeting (if necessary) and finalising the agreement under delegation.

4.4 Existing Kensington lease

Indirectly related to this lease is the lease currently being held by NRHL at Kensington. This has renewals extending until mid-2026. Given the graduated measure of the transition to a new permanent location, some activities are likely to need to continue at Kensington beyond this date requiring a new or extended lease. Staff understand the current intention is the removal of all operational flights prior to the end of the existing lease period with the only activity to continue beyond this date being maintenance and engine testing. This means that night time flights from and to Kensington would cease.

NRHL have indicated that current scheduled maintenance activity required for 5 x AW169's post heavy maintenance consists of ground running as follows.

- Each aircraft requires on average 1.5 checks per year, total = 7.5 checks per year.
- Ground run time post maintenance, average 30 minutes, total = 3.75 hours per year.

However, details of proposed activities at Kensington will be reported back to Council once a formal request is received, the exact nature of this activity is known and the broader implications understood.

4.5 Existing Control tower lease

Further to the area and lease matter under discussion, NRHL already hold a sublease on a building commonly referred to as the control tower. This building is situated between the airport terminal and the new proposed lease area and is currently used by NRHL to hold their administrative staff. NRHL have sublet the building from the leaseholder since mid-2022 with

3 one yearly rights of renewal which have been exercised, and this sublease will expire 11 July 2025.

The building is owned by Council as the airport operator and leased by an individual who has held a lease from WDA since October 2002. This lease currently expires August 2026.

Under the new NRHL proposal, where they would be implementing relocation to Onerahi while transitioning to a more permanent base elsewhere, they intend to move administrative staff off site and use this building for operational purposes and on duty pilot accommodation. The date of a likely relocation from Onerahi to their new permanent base is likely to fall past this current expiry date of their sublease. To this end NRHL have requested consent for a continuation of the sublease until August 2028.

The period extends that beyond the terms of the headlease which is due to expire December 2026. To accommodate NRHL continued to sublease for the period they are seeking, requires the headlease to be extended (by 2 years, 7 months and 4 days) to match the sublease expiry of 11 August 2028.

The lease is held with WDA a private individual and the Chief Executive has delegated authority for approving or declining such leases. Within the terms of the lease Council's for consent to a sub lease shall not be unreasonably withheld but may be given subject to reasonable conditions. Grounds for declining consent would generally be confined to the sublessee's character or financial position.

Given the lease involves a third party it has not been included within this Agenda. However, for completeness and full transparency it is covered here, noting the intention to execute any necessary agreements under delegation.

4.6 Site Options

In considering the in-principle approval of a lease in September 2022 council considered three options:

1. Support continued operation at Kensington, taking into account constraints at that site/suitability going forward and community views and preferences.
2. Support relocation to the Airport, taking into account the suitability of that site and community views and preferences.
3. Not support the operation of NEST at either site, leaving it to NEST to find an alternative.

At that time the amalgamation into NRHL had not been undertaken and funding required to establish a stand-alone base had not been mooted by NRHL. While that is now a consideration for NRHL funding has not yet been confirmed and the substantive decision for Council remains whether or not to enter into a lease at Onerahi, noting the alternative options outlined above.

As indicated previously it is understood that this would be accompanied by a request to continue to undertake maintenance operations at Kensington, essentially resulting in a hybrid option. However, at this stage Council has not received a formal request for an extension of the lease at Kensington beyond 2026. As such that request will be brought back to Council as a standalone matter.

Decisions in this Agenda do not limit or fetter Council's discretion in relation to any future lease matters, renewals, or operational arrangements, including at the airport, Kensington or other sites, with any such proposals subject to separate consideration and appropriate decision-making processes.

4.7 Financial/budget considerations

In relation to setting a rental amount for the lease, Council's Memorandum of Understanding with what was then NEST states that the Parties agree that the lease for the Whangarei Airport site will recognise that the operation is directly associated with providing a "community" emergency service. In accordance with this, the lease has been set at \$1 per annum. However, this does result in a revenue loss for the airport of around \$13,357.73 excl GST in (from existing rentals). While this is not a direct cost associated with the relocation of NRHL (which were to be met by NRHL under the November 2021 resolution), for completeness it is noted here.

4.8 Risks

As indicated above there is continued interest in the potential relocation of NRHL within both the Onerahi and Kensington communities. Under the current proposal there remains the possibility of further challenges to Council's decision making, alongside proceedings already commenced in the Environment Court. In addition the lack of certainty around funding for a new base creates the risk that NRHL will be operating at both sites beyond the temporary period currently proposed.

However, NRHL have indicated that the lease area/buildings now proposed for Onerahi will not meet their operational requirements if funding for an alternative site does not eventuate. As stated above Council will have discretion over any lease extension at Kensington once a formal proposal is received, including whether or not to grant a lease at all.

5 Significance and engagement / Te Hira me te Arawhiti

Having assessed Council's Significance and Engagement Policy the decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

Those most affected by and interested in the recommendations in this report relating to the potential relocation of NEST's flight operations to the Airport (NEST itself, the Airport and residents of Onerahi living close to the Airport) have had representation at the ANMC.

In particular, this has allowed the views of Onerahi residents to be heard and reflected in the Committee's recommendations, that have ultimately been incorporated within proposed agreements.

6 Attachments / Ngā Tāpiritanga

Attachment 1 – Letter from Health New Zealand 28 May 2025

Attachment 2 – Council Agenda Paper and Minutes 22 September 2025

Attachment 3 – NRHL Fly Neighbourly Programme

Attachment 4 – Overview of Key/Ongoing ANMC Initiatives

Attachment 5 – Proposed Lease Agreement

Attachment 6 – Proposed Standalone Agreement

Attachment 7 – Noise Shielding Advice



He Kaupare. He Manaaki.
He Whakaora.
prevention. care. recovery.

Health New Zealand
Te Whatu Ora

28 May 2025

[REDACTED]

Chairperson, ECHO Trust

[REDACTED]

[REDACTED]

[REDACTED]

Kia ora [REDACTED]

Acknowledgement of Submission – Support for Northland Rescue Helicopter Limited Infrastructure Proposal

Thank you for your thoughtful submission on behalf of ECHO (Environment. Community. Health. Onerahi) regarding the future base location of the Northland Rescue Helicopter Limited (NRHL).

We appreciate the strong support you have expressed for NRHL and the essential role they play in delivering life-saving emergency care across the Northland region.

We acknowledge the concerns raised regarding the proximity of residential housing to the airport, the impact of aircraft noise, particularly at night, and the risk of breaching Airport Noise Control boundaries. These are significant matters, and we agree that the current site is not viable as a long-term solution.

In response to these concerns and the operational limitations of both the Kensington and Onerahi sites, Northern Rescue Helicopter Limited, in partnership with the Government, is actively exploring plans to establish a new, purpose-built base at an alternative location in Whangārei.

As this involves a multi-step Government process, including due diligence, commercial negotiation, formal approval pathways, and obtaining the necessary consents, it will take time to confirm a final location. However, we are working to ensure the relocation occurs in a planned and sustainable manner.

In the interim, due to the arrival of new, more capable helicopters and the limitations of the Kensington site, there will be a temporary operational requirement to locate these aircraft at the Onerahi base. We understand the community's concerns and are working with the provider to ensure respectful and minimised disruption during this period.

Your advocacy reinforces the importance of balancing service delivery with community impact, and your submission will form part of the ongoing considerations informing the future direction of emergency air ambulance services in Northland.

Ngā mihi nui,

David Richards

David Richards

Group Manager Ambulance

Health New Zealand – Te Whatu Ora

Whangarei District Council Meeting

Agenda

Date: Thursday, 22 September, 2022

Time: 9:00 am

Location: Council Chamber
Forum North, Rust Avenue
Whangarei

Elected Members: Her Worship the Mayor Sheryl Mai
(Chairperson)
Cr Gavin Benney
Cr Vince Cocurullo
Cr Nicholas Connop
Cr Ken Couper
Cr Tricia Cutforth
Cr Shelley Deeming
Cr Jayne Golightly
Cr Phil Halse
Cr Greg Innes
Cr Greg Martin
Cr Anna Murphy
Cr Carol Peters
Cr Simon Reid

For any queries regarding this meeting please contact
the Whangarei District Council on (09) 430-4200.

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9.2. Kamo Shared Path - Land Purchase

10. Closure of Meeting / Te katinga o te Hui

Recommendations contained in the Council agenda may not be the final decision of Council.

Please refer to Council minutes for final resolution.

6.2 Airport Noise Management Committee Recommendations

Meeting: Council Meeting
Date of meeting: 22 September 2022
Reporting officer: Dominic Kula, General Manager, Planning and Development

1 Purpose / Te Kaupapa

To consider recommendations made by the Airport Noise Management Committee on the 7 September 2022, seeking direction on next steps.

2 Recommendations / Whakataunga

That Council:

1. Agree, having considered the 7 September 2022 recommendations of the Airport Noise Management Committee, to adopt:
 - a. That no Northland Emergency Services Trust (NEST) training flights occur at Onerahi Airport, in the event that NEST's operations are relocated to the Airport
 - b. That Council take an advocacy position in relation to the centralised co-ordination of flights
 - c. That Council enter into a standalone agreement with NEST covering the commitments it has made to reduce noise. This would include, but not be limited to:
 - i. Removing all training from Onerahi Airport
 - ii. Complying with Noise Abatement procedures wherever practicable
 - iii. Complying with any approved Airport Noise Management Plan, including requirements for maintenance and testing, wherever practicable.

Any agreement would need to be consistent/comply with relevant legislation and Council policies, including the District Plan and designations.
 - d. That Council works with the Airport Noise Management Committee to update the Airport Noise Management Plan, with changes to be considered including:
 - i. Updating the plan to include NEST's draft Noise Abatement Procedures
 - ii. Updated monitoring and reporting requirements (i.e. using flight path tracking technologies to identify, and clarify the reasons for, breaches)
 - iii. Technical review by airport operators (including NEST) and Marshall Day
 - iv. Updates to policies, systems and procedures included in the 2009 Plan
 - e. That Council take an advocacy role on the timing of investment in new aircraft (noting this would not be a decision for Council or NEST).

- f. That Council work with the Airport Noise Management Committee to develop a communications plan and/or education programme.

And that Council further resolves:

2. That for the avoidance of doubt training commitments identified under Resolution 1 (a) to (f) relate to flight training based at the Airport, as outlined in Attachment 3. While this flight training would not occur at the Airport should NEST relocate to that location, it is noted that flights would still be required to transit to and from any offsite flight training locations.
3. Note that NEST and the Airport will look at mechanisms to communicate flight training undertaken prior to any relocation, aligning these with any communications plan developed under 1 f.
4. Note the recommendations not supported by the Airport Noise Management Committee, along with supporting information/analysis.
5. Confirm Council support for the relocation of NEST from Kensington Park to Whangarei District Airport.
6. Authorise staff to undertake negotiations with NEST for a new lease at Whangarei District Airport, and a short term extension to the existing lease at Kensington.
7. Authorise the Chief Executive to finalise and execute leases with NEST at Whangarei District Airport and Kensington, along with any standalone agreement with NEST covering the commitments to reduce noise.

3 Background / Horopaki

On 11 November 2021, Council resolved in an Extraordinary Council Meeting to support in principle the relocation of NEST to Whangarei District Airport, delegating the lease negotiation and execution. Alongside this Council resolved to investigate the establishment of an Airport Noise Management Committee (the Committee).

On 30 March 2022 the Committee was established for the 2019-2022 triennium, with Council reconfirming the resolutions of its meeting of 11 November 2021. Non elected members were appointed at the May and June 2022 meetings of Council, with the first meeting of the Committee being held on 13 July 2022.

With the potential relocation of NEST to Whangarei Airport at Onerahi (Airport), working through the operational and noise implications of any relocation have been an early focus for the Committee. At a Briefing of 04 August 2022 collective direction was sought from the Committee in order to identify options for reducing potential noise impacts of any NEST relocation (if that were to occur).

In discussion with subject matter experts (i.e. Airport Management, Marshall Day and NEST) a number of potentially feasible options were identified by the Committee for further investigation. Further work was then undertaken on the 'potentially feasible options' identified by the Committee, with resulting recommendations being considered at a meeting of 7 September 2022. A copy of the Agenda for that meeting is included as Attachment 1, with the minutes from the meeting included as Attachment 2.

This Agenda tables the recommendations of the Committee for consideration of Council, before outlining recommendations not supported by the Committee and seeking direction/decisions from Council on next steps.

4 Discussion / Whakawhiti kōrero

At their meeting on 7 September 2022 the Committee considered a report outlining feasible options relating to the relocation of NEST to the Airport away from its current Kensington base.

4.1 Recommendations to Council

Based on direction/feasible options identified by the Committee, and taking into account the further investigation outlined in the report, the Committee recommended to Council:

- a. That no Northland Emergency Services Trust (NEST) training flights occur at Onerahi Airport, in the event that NEST's operations are relocated to the Airport.
- b. That Council take an advocacy position in relation to the centralised co-ordination of flights.
- c. That Council enter into a standalone agreement with NEST covering the commitments it has made to reduce noise. This would include, but not be limited to:
 - i. Removing all training from Onerahi Airport
 - ii. Complying with Noise Abatement procedures wherever practicable
 - iii. Complying with any approved Airport Noise Management Plan, including requirements for maintenance and testing, wherever practicable.

Any agreement would need to be consistent/comply with relevant legislation and Council policies, including the District Plan and designations.
- d. That Council works with the Airport Noise Management Committee to update the Airport Noise Management Plan, with changes to be considered including:
 - i. Updating the plan to include NEST's draft Noise Abatement Procedures
 - ii. Updated monitoring and reporting requirements (i.e. using flight path tracking technologies to identify, and clarify the reasons for, breaches)
 - iii. Technical review by airport operators (including NEST) and Marshall Day
 - iv. Updates to policies, systems and procedures included in the 2009 Plan
- e. That Council take an advocacy role on the timing of investment in new aircraft (noting this would not be a decision for Council or NEST).
- f. That Council work with the Airport Noise Management Committee to develop a communications plan and/or education programme.

While NEST staff have been involved throughout the process these recommendations, if approved by Council, will also require approval from the NEST Board.

A need for clarity on training commitments made by NEST was raised by the Committee at its meeting of 07 September 2022. At that time it was confirmed that, as indicated in the recommendations, only flight training would be removed from the Airport if NEST were to relocate. To ensure clarity a copy of the training plan/commitments made by NEST has been included as Attachment 3. This plan provides the basis for modelling undertaken by Marshall Day, and worked through with the Committee. As such a further resolution is proposed that:

For the avoidance of doubt training commitments identified under Resolution 1 relate to flight training based at the Airport, as outlined in Attachment 3. While training will be removed from the Airport should NEST relocate to that location, it is noted that flights would still be required to transit to and from any offsite flight training location.

Training will remain at the Airport prior to any relocation, with NEST have committing to communicating with the community prior to any training being undertaken. It is recommended that, should the recommendations of the Committee be accepted, this be done in conjunction with recommendation f.

4.2 Recommendations not supported by the Committee

In working through the matters outlined in Attachment 1 the Committee resolved not to support/recommend the establishment, as a good will gesture, a one-off contestable fund to subsidise the insulation and ventilation of homes close to the Airport (recommendation 2 c. of Attachment 1). However, establishing such a fund is an option that remains open to the Council.

At the 7 September Committee meeting the following Notice of Motion was tabled by Community Representative Committee member Gary Stables:

1. *That the Whangarei District Council does not sign a lease with NEST to relocate to Onerahi Airport until:*
 - a. *A substantial report is provided by NEST to the Airport Noise Management Committee and Whangarei District Council detailing evidence of all sites investigated and what feasibility examination NEST took to determine their unsuitability to date;*
 - b. *That all future known and unknown possible options for a new site be investigated with a committee that comprises NEST, Whangarei District Council and Community representatives with recommendations forwarded to Whangarei District Council for appraisal.*

In response to this, staff tabled information provided by NEST outlining the process that NEST went through in order to identify the Airport as its preferred site, along with alternatives considered (Attachment 4). In doing so it was noted that the 11 November 2021 Agenda to Council considered constraints around continued operation at Kensington, indicating that while NEST had explored future sites, the Airport remained their preferred option.

As such the options available to Council at that time can be summarised as, and broadly remain, to:

1. Support continued operation at Kensington, taking into account constraints at that site/suitability going forward and community views and preferences.
2. Support relocation to the Airport, taking into account the suitability of that site and community views and preferences.
3. Not support the operation of NEST at either site, leaving it to NEST to find an alternative.

While a fourth option could be for Council to take an active role in finding an alternative site for NEST, there is no requirement for Council to do so (NEST is a standalone charitable trust). It is also noted that, as has been outlined in the summary, NEST has already considered multiple sites before landing on the Airport as their preferred location. As this site investigation process was not led by Council we do not hold detailed information on the options considered by NEST. NEST have indicated that some are commercially sensitive.

The Notice of Motion was not supported by the Committee.

4.3 Risks

In working through these recommendations the need for NEST to ‘fly safe, and save lives’ was worked through with the Committee. As such the Agenda of 07 September 2022 notes that *“the nature of NEST’s operations means that there will be times where they are not able to comply with the Noise Management Plan, and any associated Noise Abatement Procedures”*. This risk is then addressed in the recommendations which provide for compliance ‘wherever practicable’, and stress that any standalone agreement *“would need to be consistent/comply with relevant legislation and Council policies, including the District Plan and designation”*.

The other key risk worked through in the Agenda of 07 September 2022 related to the establishment of a contestable fund. While not recommended by the Committee this risk remains should Council wish to pursue that option.

4.4 Next steps

Having worked through this process staff now require direction. Taking into account the matters outlined above, and considered through previous items to Council, staff are seeking confirmation of Council’s support for the relocation of NEST from Kensington Park to the Airport (option 2) and authorisation to negotiate a lease with NEST (along with any other associated agreements).

If this is provided NEST have indicated that they would require one year from any lease being signed to construct required facilities and relocate flight operations (note; this only relates to any areas covered under a new lease, NEST have existing leases at the Airport and Council cannot ‘unreasonably withhold’ consent to any sublet/assignment entered into with a third party).

If support for the relocation is provided, and recognising the timeframes required, a short term extension of the lease at Kensington would therefore also be required (the lease expires in July 2023, with an extension likely being required through to December 2023). If relocation is not supported, or agreement cannot be reached on the terms of any lease, NEST will likely need to remain at Kensington for the foreseeable future while any investigation into alternative sites is undertaken, in which case a longer term extension of the lease at Kensington may be required.

For both scenarios communication with the Kensington community will be critical. As noted above, if NEST is to relocate to the Airport, communication with the Onerahi community will also be critical.

5 Significance and engagement / Te Hira me te Arawhiti

While the potential for public interest in the move has been identified the decisions in the Agenda do not trigger two or more of the criteria in Council’s Significance and Engagement Policy.

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council’s Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

Those most affected by and interested in the recommendations in this report relating to the potential relocation of NEST’s flight operations to the Airport (NEST itself, the Airport and residents of Onerahi living close to the Airport) have representation on the Committee. In particular, this has allowed the views of Onerahi residents to be heard and reflected in the Committee’s recommendations noted above.

6 Attachments / Ngā Tāpiritanga

1. Agenda from the Airport Noise Management Committee Meeting of 07 September 2022
2. Post-Meeting Minutes of Airport Noise Management Committee Meeting of 07 September 2022
3. NEST Training Plan
4. NEST Base Site Consideration and Selection

Whangarei District Council Meeting Minutes

Date: Thursday, 22 September, 2022
Time: 9:00 a.m.
Location: Council Chamber
 Forum North, Rust Avenue
 Whangarei

In Attendance	Her Worship the Mayor Sheryl Mai (Chairperson) Cr Gavin Benney Cr Vince Cocurullo Cr Nicholas Connop Cr Ken Couper Cr Tricia Cutforth Cr Shelley Deeming Cr Jayne Golightly Cr Phil Halse Cr Greg Innes Cr Greg Martin Cr Anna Murphy Cr Carol Peters Cr Simon Reid
Scribe	C Brindle (Senior Democracy Adviser)

Administrative Matters

- Meeting livestreamed
- Supplementary reports:
 - Item 4.1 – Public Forum – additional speaker
 - Item 5.3 – Minutes Extra ordinary Whangarei District Council meeting 20 September 2022 (Open and Confidential)
 - Item 7.5 – Te Karearea Strategic Partnership Standing Committee recommendations

1. Karakia/Prayer

Cr Murphy opened the meeting with a karakia/prayer.

Acknowledgements

- Presentation of flowers/plants from the Whangarei Quarry Gardens Trust acknowledging the Mayor and Elected Members' involvement in the Trust.

- Acknowledgement of Queen Elizabeth II, passed away on 8 September 2022.

2. Declarations of Interest / Take Whaipānga

Item 6.2 – Airport Noise Management Recommendations

Item 6.3 – Temporary Road Closure Application – Christmas Parade

Item 6.4 – Tutukaka Marina Management Trust – loan request

Item 6.5 – Okara Marina Loan Agreement Decision.

3. Apologies / Kore Tae Mai

There were no apologies.

4. Public Forum / Huihuinga-a-tangata

Robin Lieffering and members of the Positive Ageing Advisory Group – appreciation for support for Mayor and council's support for the Positive Ageing Advisory Group

David Lloyd Edmeades, Major Chris Williams and Paula Harris – Whangarei Air and Army Cadets future relocation plans

Paul Doherty – Airport Noise Management Committee recommendations re NEST relocation to the airport.

5. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 25 August 2022

Moved By Cr Carol Peters

Seconded By Cr Anna Murphy

That the minutes of the Whangarei District Council meeting held on Thursday 25 August 2022, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council Meeting held 24 August 2022

Moved By Cr Carol Peters

Seconded By Cr Shelley Deeming

That the minutes of the Whangarei District Council meeting held on Wednesday 24 August 2022, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

Extra ordinary business

Item 5.3 – Open minutes Extra ordinary Council meeting 20 September and
Item 1.3 confidential minutes

Item 7.5 – Te Karearea Strategic Partnership Standing Committee -
recommendations

Both items were not distributed within the legislative timeframe and require a
resolution for the council to consider as extra ordinary business today.

These items only became available after meetings held during the last 2 days.

Council are asked to consider these matters at today's meeting as this is the
last scheduled council meeting for the triennium.

Moved By Cr Greg Innes

Seconded By Cr Carol Peters

That Council consider:

1. Item 5.3 & 1.3 - Minutes of the Extra ordinary Council meeting held
20 September 2022 and
2. Item 7.5 – Te Karearea Strategic Partnership Standing Committee
recommendations, at today's meeting.

Carried

5.3 Minutes Extra ordinary Whangarei District Council Meeting held 20 September 2022

Moved By Cr Vince Cocurullo

Seconded By Cr Tricia Cutforth

That the minutes of the Whangarei District Council meeting held on
Tuesday 20 September 2022, including the confidential section, having
been circulated, be taken as read and now confirmed and adopted as a
true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Whangarei District Council Communication-Strategy-2022-2025

Moved By Cr Nicholas Connop

Seconded By Cr Carol Peters

That the Council adopt the Whangarei District Council Communication
Strategy 2022-2025.

Carried

6.2 Airport Noise Management Committee Recommendations

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That Council:

1. Agree, having considered the 7 September 2022 recommendations of the Airport Noise Management Committee, to adopt:

a. That no Northland Emergency Services Trust (NEST) training flights occur at Onerahi Airport, in the event that NEST's operations are relocated to the Airport

b. That Council take an advocacy position in relation to the centralised co-ordination of flights

c. That Council enter into a standalone agreement with NEST covering the commitments it has made to reduce noise. This would include, but not be limited to:

i. Removing all training from Onerahi Airport

ii. Complying with Noise Abatement procedures wherever practicable

iii. Complying with any approved Airport Noise Management Plan, including requirements for maintenance and testing, wherever practicable.

Any agreement would need to be consistent/comply with relevant legislation and Council policies, including the District Plan and designations.

d. That Council works with the Airport Noise Management Committee to update the Airport Noise Management Plan, with changes to be considered including:

i. Updating the plan to include NEST's draft Noise Abatement Procedures

ii. Updated monitoring and reporting requirements (i.e. using flight path tracking technologies to identify, and clarify the reasons for, breaches)

iii. Technical review by airport operators (including NEST) and Marshall Day

iv. Updates to policies, systems and procedures included in the 2009 Plan

- e. That Council take an advocacy role on the timing of investment in new aircraft (noting this would not be a decision for Council or NEST).
- f. That Council work with the Airport Noise Management Committee to develop a communications plan and/or education programme.

And that Council further resolves:

- 2. That for the avoidance of doubt training commitments identified under Resolution 1 (a) to (f) relate to flight training based at the Airport, as outlined in Attachment 3. While this flight training would not occur at the Airport should NEST relocate to that location, it is noted that flights would still be required to transit to and from any offsite flight training locations.
- 3. Note that NEST and the Airport will look at mechanisms to communicate flight training undertaken prior to any relocation, aligning these with any communications plan developed under 1 f.
- 4. Note the recommendations not supported by the Airport Noise Management Committee, along with supporting information/analysis.
- 5. Confirm Council support *in principle* for the relocation of NEST from Kensington Park to Whangarei District Airport.
- 6. Authorise staff to undertake negotiations with NEST for a new lease at Whangarei District Airport, and a short term extension to the existing lease at Kensington.
- 7. Authorise the Chief Executive to finalise and execute leases with NEST at Whangarei District Airport and Kensington, along with any standalone agreement with NEST covering the commitments to reduce noise.

On the motion being put Cr Deeming called for a division:

	For	Against	Abstain
Her Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Vince Cocurullo	X		
Cr Nicholas Connop	X		
Cr Ken Couper		X	
Cr Tricia Cutforth	X		
Cr Shelley Deeming	X		
Cr Jayne Golightly		X	
Cr Phil Halse	X		
Cr Greg Innes	X		

Cr Greg Martin	X		
Cr Anna Murphy	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Results	11	3	0

The motion was Carried (11 to 3)

Declarations of Interest:

Her Worship the Mayor, Cr's Cutforth and Halse declared their interests as members of the Airport Noise Management Committee.

Note: Correction to Item 5, inclusion of the words 'in principle' reported to Council 3 August 2023.

6.3 Temporary Road Closure – Whangarei Christmas Parade

Moved By Cr Anna Murphy

Seconded By Cr Nicholas Connop

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Whangarei Christmas Parade on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 26 November 2022

Railway Road, from Woods Road to end of Railway Road, 8.00am to 2.00pm

Woods Road, from Albert Street to Railway Road, 10.50am to 12.45pm

Albert Street, from Cameron Street to Woods Road, 10.00am to 1.00pm

Cameron Street, from John Street to Albert Street, 11.00am to 12.45pm

Cameron Street Laneway, from James Street to John Street, 7.00am to 4.00pm

James Street, from Robert Street to James Street, 7.00am to 4.00pm.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.

3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

Declaration of Interest:

Cr Cocurullo declared an interest due to his involvement with the Rotary Club of Whangarei South.

6.4 Tutukaka Marina Management Trust – request for a loan

Moved By Cr Phil Halse

Seconded By Cr Anna Murphy

That Council

- a. Council agrees to provide funding to the Tutukaka Marina Management Trust to a value of up to \$750,000, advanced through a maximum of 3 drawdowns, with all funds to be repaid within 5 years of the initial drawdown.
- b. Delegates the Chief Executive to finalise terms and conditions of the funding including drawdown, interest and repayment terms, upon receipt of satisfactory cashflow projections from Trust.

Carried

Declaration of Interest:

Cr Martin declared an interest as council's appointed representative to the Trust. Cr Martin withdrew from discussions and voting on Item 6.4.

6.5 Okara Marina Loan Agreement

Moved By Cr Greg Innes

Seconded By Cr Vince Cocurullo

That Council:

1. Make available to the Whangarei Harbour Marina Management Trust a \$5m loan facility subject to agreement on all terms and conditions, including but not limited to:
 - a. Minimising any impact on Council's balanced budget
 - b. A general security over all of the Trust's assets
 - c. Suitable levels of insurance cover
 - d. Indemnity from any claim against Council
 - e. An independent assessment of credit quality.
2. Delegate staff to negotiation terms and conditions of an agreement, prior reporting back to Council for approval.

Carried

Declarations of Interest:

Crs Deeming and Halse declared their interests as council's appointed representatives to the Trust.

7. Information Reports / Ngā Pūrongo Kōrero

7.1 Financial report for the two months ending 31 August 2022

Moved By Cr Greg Martin

Seconded By Cr Simon Reid

That the Council notes the operating results for the two months ending 31 August 2022.

Carried

7.2 Capital Projects Report for the 2 Months Ending 31 August 2022

Moved By Cr Greg Innes

Seconded By Cr Ken Couper

That the Council notes the Capital Projects Report for the period ending 31 August 2022.

Carried

7.3 Capital Projects Delivery

Moved By Cr Phil Halse

Seconded By Cr Carol Peters

That Council note the Capital Programme Delivery Report.

Carried

7.4 Living Wage

Moved By Cr Tricia Cutforth

Seconded By Cr Nicholas Connop

That Council commit to a staged implementation of the Living Wage for directly employed contractors who deliver regular and ongoing core services, with cleaning contracts as a priority in the next 12 months.

On the motion being put Cr Cutforth called for a division:

	For	Against	Abstain
Her Worship the Mayor	X		
Cr Gavin Benney		X	
Cr Vince Cocurullo		X	
Cr Nicholas Connop	X		
Cr Ken Couper		X	

Cr Tricia Cutforth	X		
Cr Shelley Deeming		X	
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Greg Innes	X		
Cr Greg Martin		X	
Cr Anna Murphy	X		
Cr Carol Peters	X		
Cr Simon Reid		X	
Results	7	7	0

**The motion was Carried (7 to 7)
on the Casting Vote of Her Worship the Mayor**

7.5 Te Karearea Strategic Partnership Standing Committee Recommendations

Moved By Cr Phil Halse

Seconded By Cr Carol Peter

That the Council note the recommendations of the Te Kārearea Strategic Partnership Standing Committee.

On the motion being put Cr Martin called for a division:

	For	Against	Abstain
Her Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Vince Cocurullo		X	
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Tricia Cutforth	X		
Cr Shelley Deeming		X	
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Greg Innes	X		
Cr Greg Martin		X	
Cr Anna Murphy	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Results	11	3	0

The Motion was Carried (11 to 3)

A break was taken from 11.33am to 11.47am following Item 7.5.

8. Valedictory Speeches**8.1 Valedictory speeches**

Moved By Cr Vince Cocurullo

Seconded By Cr Carol Peters

That Council notes the valedictory speeches from the outgoing elected members not standing for re-election.

Carried

Valedictory speeches were given by:

Cr Anna Murphy

Cr Tricia Cutforth

Cr Shelley Deeming

Cr Greg Innes

Her Worship the Mayor.

9. Public Excluded Business / Rāhui Tangata

There was no business conducted in public excluded.

10. Closure of Meeting / Te katinga o te Hui

Cr Murphy closed the meeting with a karakia/prayer at 1.27pm.

Confirmed this 27th day of September 2022

Her Worship the Mayor Sheryl Mai (Chairperson)

Simon Weston (Chief Executive)

Issued to:

All Flight Crew and Engineering Staff on 24 February 2025.

Approved by:

Russell Pirihi (Flight Operations Manager)

Objectives:

This programme is designed to minimise the adverse impact of helicopter noise upon local residents at Whangārei Airport (NZWR). It has been developed in cooperation with the Whangārei District Council (WDC) Airport Noise Management Committee and forms part of the future lease agreement with the WDC for NRHL operations at NZWR.

Purpose:

This OI provides guidance and direction to flight crews and engineering staff involved in flight and ground operations at NZWR.

NZWR Aerodrome Chart

Pilots should review the NZWR aerodrome chart (NZWR 51.1) noting the “noise sensitive areas” and associated notes on the chart.

Ground Operations:

- a. Pilots shall minimise the amount of time spent on the ground with engines running, wherever practical.
- b. Pilots shall minimise the duration of warm-up or cool-down periods. Do not idle for extended periods.
- c. Whenever feasible, park into wind to minimise noise. If the wind speed is above 5 knots, avoid parking more than 15 degrees out of wind. This will minimise tail rotor noise.

Hover / Hover Taxi / Ground Taxi:

- a. Outbound
Pilots should ground taxi to line up on runway 06/24 whenever practical. Hover taxiing should be restricted to when no paved taxiway route to the runway exists.
- b. Inbound
Pilots should land at the mid-point of runway 06/24 and then ground taxi to the parking area whenever practical. Hover taxiing should be restricted to when no paved taxiway route to the runway exists.

Take-off and Climb (Departure):

- a. Use runway 06/24 and maintain runway centreline until over the sea. No turns are permitted until over the sea and above 700' AMSL. Where practical, fly a steep departure.
- b. Operations to grass runway 14/32 are not normally permitted unless it is essential to conform to existing circuit traffic, or in the event of an emergency.

Enroute and Cruise Flyover:

- a. Pilots shall avoid overlying the airport or surrounding noise sensitive areas unless there is a specific reason to do so. e.g. IFR departure from Kensington climbing on the “Specific Departure” as per the WRE AFG which should mean crossing NZWR close to 4000'.
- b. Routing overhead the airfield VFR is not permitted unless required to avoid other traffic. In this case transit at 2500' or higher, if possible.
- c. Pilots conducting instrument approaches to NZWR with the intention to break-off visually to the hospital or Kensington Park shall remain at least 1nm clear of the airport shoreline and noise sensitive areas (i.e. prior to Limestone Island on RNAV-C).
- d. Pilots conducting training instrument approaches in VMC shall ensure the missed approach turn is conducted at least 1nm clear of the airport shoreline. For RNAV-C this will require the missed approach turn to be initiated prior to Limestone Island. Increase MDA to minimum 1000' AMSL.



Descent / Landing (Approach):

- Use runway 06/24 and be established on the centreline not below 700' AMSL while still over the sea. Fly a steep approach to land at the runway mid-point.
- Operations to grass runway 14/32 are not normally permitted unless it is essential to conform to existing circuit traffic, or in the event of an emergency.
- Do not join overhead, and avoid joining right base for runway 24.

Training Flights:

- Circuit training at NZWR is not permitted. Training flights may depart from the airport to conduct training elsewhere and return to the airport at the conclusion. Practising simulated aircraft malfunctions on departure or arrival is only permitted if such exercises have no impact on the standard flight path and time taken to arrive or depart.

Ground Maintenance Engine Running / Hovering:

- This should be carried out in the best position to shield noise from neighbours.
- Engine ground runs, hovering for maintenance test flight purposes including winch heavy lift checks, must only be undertaken between 0800 to 1800 unless required for an urgent emergency response. Any noise generating maintenance activities outside these hours are to be recorded and reported to the Whangārei Base Manager who will then notify the Airport Noise Management Committee.

General Exception:

The general exception to noise restrictions is for safety reasons or when dealing with an aircraft malfunction in which case the crew should take the most appropriate course of action. There is also no restriction on continuing an instrument approach to minima and landing at NZWR when required to do so due to weather.

Attachment 4: work undertaken/ongoing through the ANMC

Complaints Policy/Escalation - A complaints process has been formalised, outlining an easy-to-follow process managed within the existing Council “Request” system, providing for escalation to the Committee and beyond. This process enables accurate complaint management, certainty of process and the oversight of the ANMC. The draft Policy was endorsed by the Committee at its June 2025 meeting.

Airport Noise Management Plan – The ANMC have collaborated with staff to undertake a full review of the existing Airport Noise Management Plan (ANMP) with the view of creating a more concise and fit for purpose document addressing all issues of noise at the airport not just those relating to NRHL. This is now almost complete and will be returned to the next ANMC meeting for their approval.

Flight and Noise Monitoring - Staff are investigating technology available for flight and noise monitoring, with initial enquiries suggesting that permanent fixed noise monitoring devices may not be practical or cost-effective at a smaller provincial airport like Onerahi. Currently permanent fixed monitoring devices exist at only three airports in New Zealand all of which are larger commercial airports operating jet aeroplanes and international flights. Various options are being investigated, and it is acknowledged that any benefits will need to be weighed against the costs of implementation on what is a small regional airport. The outcomes of this investigation will be reported back to the Committee in due course, prior to any recommendations to Council.

2024 Biennial Aircraft Noise Compliance Contours - The 2024 Biennial Aircraft Noise Contours (ANC) uses aircraft movements at Whangarei Airport during the busiest three months of the last two years (period 1 January 2023 – 30 November 2024).

The modelled noise contours show compliance with the District Plan noise controls, except for two locations located on the airfield. These exceedances are located near the apron north of the runway. Marshall Day note that similarly, in last year’s ANC there was a similar Airnoise Boundary (ANB) exceedance to the north of the runway with the results largely being driven by the refined modelling software now used (as opposed to the historic software used at the time of the District Plan boundaries). These exceedances are considered acceptable by Marshall Day as they occur on airfield only, and do not affect any relevant receivers.

Engine Testing - Management of the noise impact of helicopter engine maintenance, and associated engine testing, if it were to be undertaken at Onerahi could result in a breach of District Plan requirements. However, NRHL’s current proposal does not have them undertaking maintenance and testing at Onerahi. If NRHL were to undertake maintenance and engine testing at Onerahi and the District Plan cannot be complied with then resource consent would be required.

Reporting and Feedback Loops - A communication and engagement plan has been worked through with the ANMC on a number of occasions, resulting in updates to the Council and airport websites. Documentation such as the Airport Noise Management Plan and Fly Neighbourly (once finalised and approved) are to be communicated through these platforms, along with complaint process.

Community Engagement – Community engagement remains an important aspect of operating any commercial airport. The Committee as the interface between

Council/Airport Management and the community has a key role to play in developing the communications plan and ongoing engagement with the community.

Community Survey –To gain a clearer understanding of the Onerahi airport community's perception as to the impact of NRHL's presence at the airport, an outside agency has been engaged to undertake a survey of nearby residence (approximately 500 households in total). It is intended, time permitting, that a baseline survey prior to the relocation be undertaken and then a follow up one be conducted after an establishment period to provide the ANMC and Council accurate information on NRHL's operation at the airport.

LEASE

BETWEEN

WHANGAREI DISTRICT COUNCIL

AND

NORTHERN RESCUE HELICOPTER LIMITED

DEED OF LEASE dated the day of 2025

BETWEEN WHANGAREI DISTRICT COUNCIL ("Council")

A N D NORTHERN RESCUE HELICOPTER LIMITED ("Tenant")

BACKGROUND:

The Council has agreed to lease to the Tenant part of the Property vested in Council situated at Whangarei Airport, Whangarei.

GRANT:

The Council leases to the Tenant and the Tenant accepts the lease of the Land for the Term, beginning on the Commencement Date and ending on the Expiry Date, at the Rent and subject to the covenants, conditions, agreements and restrictions in this Lease.

EXECUTED as a deed:

SIGNED for and on behalf of

WHANGAREI DISTRICT COUNCIL

by

.....

Authorised Officer

in the presence of:

.....

Witness to complete in BLOCK letters

Name:

Address:

Occupation:

SIGNED by the Tenant

NORTHERN RESCUE HELICOPTER LIMITED

in the presence of:

Witness

Signature: _____

Name (in full): _____

Occupation: _____

Address: _____

LEASE BACKGROUND

- A. The land known as Whangarei Airport ("Whangarei Airport") is owned by the Crown but vested in the Lessor.
- B. The Lessor is empowered to act as an airport authority pursuant to Section 3 of the Airport Authorities Act 1966.
- C. The Lessor is the airport authority for Whangarei Airport.
- D. The Lessor has the power to lease land at Whangarei Airport pursuant to the provisions of the Airport Authorities Act 1966.
- E. The Lessor has agreed to lease certain land at Whangarei Airport to the Lessee.

REFERENCE SCHEDULE

LAND:	That portion of the Property comprising 3600 m2 more or less being the area shown delineated in red on the plan annexed hereto
TERM:	Ten (10) years
COMMENCEMENT DATE:	1 st day of December 2024
EXPIRY DATE:	30 th day of November 2034
ANNUAL RENT:	\$1.00 per annum plus GST subject to clauses 3.3 through 3.5 of this lease
AUTHORISED USE:	Rescue Helicopter Base
RENT REVIEW DATE (for the purposes of clause 3.5)	Every annual anniversary of the Commencement Date
MINIMUM PUBLIC LIABILITY INSURANCE COVER:	\$5,000,000.00
DEFAULT INTEREST RATE:	11 % per annum

GENERAL PROVISIONS

1. INTERPRETATION

In this deed unless the context indicates otherwise:

1.1. Definitions:

"Act" means the Airport Authorities Act 1966;

"Authority" means and includes every governmental, local, territorial and statutory authority having jurisdiction or authority over the Land or Building or their use;

"Building" means any buildings, including alterations or additions, erected on the Land by the Tenant (if any);

"Building Work" means work for or in connection with the construction, alteration, demolition or removal of a Building or any fixtures or Improvements and includes earthworks preparatory to or associated with that construction, alteration, demolition or removal and any work of a structural or retaining nature, and services associated with that work;

"Council" means Whangarei District Council and includes the Council's assigns;

"Excepted Event" means:

- (a) fire, flood, explosion, lightning, storm, earthquake or volcanic activity;
- (b) the occurrence of any other peril against the risk of which the Council may elect to insure from time to time;

"GST" means tax levied under the Goods and Services Tax Act 1985 and includes any tax levied in substitution for that tax;

"Improvement" means any improvement in or on the Land, and includes all pipes, drains, conduits and other connections for utilities that primarily serve the Land, regardless of whether they are located in or on the Land and includes the carpark that the Tenant is to construct on the Land;

"Land" means area comprising 3600 square metres more or less and being that part of the Property as is shown delineated in red on the plan attached hereto;

"Lease" means this lease or any lease in substitution therefore;

"Property" means the Whangarei Airport situated at Handforth Street, Onerahi, Whangarei;

"Rent" means the annual rent specified in the Reference Schedule subject to changes consequent upon Council's exercise of any right to review the annual rent;

"Tenant" means the original tenant set out on page 1;

"Tenant's Agent" means a person for whose acts or omissions the Tenant is responsible and includes without limitation the Tenant's agents, employees, contractors and invitees;

"Working Day" has the meaning given to it in the Property Law Act 2007. Notices served after 5pm on a Working Day, or on a day which is not a Working Day, shall be deemed to have been served on the next succeeding Working Day.

- 1.2. Reference Schedule Expressions:** the expressions "Term", "Commencement Date", "Default Interest Rate", "Expiry Date", "Rent Review Date", "Authorised Use", "Minimum Public Liability Insurance Cover" and Default Interest Rate will be interpreted by reference to the Reference Schedule;
- 1.3. Defined Expressions:** expressions defined in the main body of this deed have the defined meaning in the whole of this deed including the background;
- 1.4. Gender:** words importing one gender will include the other genders;
- 1.5. Headings:** section, clause and other headings are for ease of reference only and will not affect this deed's interpretation;
- 1.6. Negative Obligations:** any obligation not to do anything will include an obligation not to suffer, permit or cause that thing to be done;

- 1.7. Parties:** references to parties are references to parties to this deed;
- 1.8. Persons:** references to persons will include references to individuals, companies, corporations, partnerships, firms, joint ventures, associations, trusts, organisations, governmental or other regulatory bodies or authorities or other entities in each case whether or not having separate legal personality;
- 1.9. Plural and Singular:** words importing the singular number will include the plural and vice versa;
- 1.10. Schedules:** the schedules to this deed and the provisions and conditions contained in these schedules will have the same effect as if set out in the body of this deed;
- 1.11. Sections, Clauses and Schedules:** references to sections, clauses and schedules are references to this deed's sections, clauses and schedules;
- 1.12. Statutes and Regulations:** references to any statutory provision will include any statutory provision which amends or replaces it, and any subordinate legislation made under it.
- 1.13. Reference Schedule Provisions:** wherever words appear in the General Provisions of this Lease (clauses 1 through 28) that also appear in the Reference Schedule then those words shall mean and include the details supplied after them in the Reference Schedule.

2. TERM

- 2.1.** The Term of this Lease will commence on the Commencement Date and will end at 5pm on the Expiry Date.
- 2.2.** If Council permits the Tenant to remain in occupation of the Land after the end or earlier termination of the Term, the Tenant will occupy the Land pursuant to a periodic tenancy only terminable by 20 Working Days notice at the rent then payable and otherwise on the same covenants and agreements (so far as applicable to a periodic tenancy) as are expressed or implied in this Lease.

3. RENT

- 3.1.** The Tenant shall pay to Council the Annual Rent plus GST in advance of the first day of December of each year during the term commencing on the Commencement Date and annually thereafter subject to review.
- 3.2.** The Tenant must not reduce any payment of Rent by making any deduction from it or set off against it.
- 3.3.** The Annual Rental payable under this lease is a concessional rental such being set on the basis that the Tenant is an organisation providing a community based undertaking/service and is not undertaking any commercial activities on the Land.
- 3.4.** In the event Council forms the opinion, acting reasonably, that any commercial, or partly commercial undertaking, is occurring on the Land then Council can seek to review the Annual Rental being charged so that such shall reflect the current market rent for the Land provided always that any undertaking of a commercial or partly commercial nature can only be initiated with the consent of the Council.
- 3.5.** If the Council decides, on the basis that the Land or part of the Land is being used for a commercial purpose, that the rent for all or any part of the Land is to be set or reviewed to the current market rent for that space, or to a proportion of the current market rent, the current market rent for the Land will be decided in the following way:
- 3.5.1.** The Council may give written notice to the Tenant ("Council's Notice") specifying the Annual Rent the Council considers to be the current market rent for the Land at any time with such current market rent to come into effect on the next Rent Review Date.
- 3.5.2.** The Tenant may within 20 Working Days after receiving the Council's notice by written notice to the Council ("Tenant's Notice") dispute the current market rent set out in the Council's Notice and the basis upon which such is sought. The Tenant's Notice must state the Tenant's assessment of the current market rent. If the Tenant does not give a Tenant's Notice (time being of the essence) the Tenant will be taken to have accepted the current market rent set out in the Council's Notice.

- 3.5.3.** If the Tenant gives a Tenant's Notice, then the current market rent will be decided in accordance with clause 3.6. However, the new Rent will not be less than the Annual Rent payable during the period of 12 months immediately before the relevant Rent Review Date.
- 3.5.4.** The current market rent so decided or accepted will be the Rent from the next Rent Review Date.
- 3.5.5.** From the relevant date as applies under clause 3.5.1 until the current market rent has been decided or accepted, the Tenant will pay the rent specified in the Council's Notice, as long as a certificate from a registered valuer substantiates the rent. The Council will give the Tenant a copy of that certificate when it gives its notice under clause 3.5.1. Once the current market rent has been decided an appropriate adjustment will be made.
- 3.5.6.** Either party may request the rent review to be recorded in a deed. The Tenant will pay the cost of the deed.
- 3.6.** The parties will try to agree on the current market rent immediately after the Council receives the Tenant's Notice. If the parties do not reach agreement within 10 Working Days after the date of service of the Tenant's Notice, then the parties may determine the current market rent in either of the following ways:
- 3.6.1.** By one party giving notice to the other requiring the current market rent to be decided by arbitration; or
- 3.6.2.** If the parties so agree, by registered valuers acting as experts and not as arbitrators as follows:
- (a) Each party will appoint a valuer. They will give written notice of the appointment to the other party within 10 Working Days of the parties agreeing to decide the current market rent in this way.
 - (b) If the party receiving a notice does not appoint a valuer within the 14 Working Day period, then the valuer appointed by the other party will decide the current market rent. The valuer's decision will be binding on both parties.

- (c) As soon as the valuers are appointed, they must appoint an umpire. The umpire shall be a registered valuer.
- (d) The valuers will then decide the current market rent of the Land. The rent will be decided by the umpire, if the valuers do not agree on it within one month of the date of appointment of the last of them to be appointed.
- (e) Each party will be given the opportunity to make written or verbal representations to the valuers or the umpire, subject to any reasonable time and other limits the valuers or the umpire prescribe. The valuers or the umpire will have regard to those representations, but will not be bound by them.
- (f) The umpire or the valuers will give written notice to the parties of their decision as soon as practicable after they make it. The notice will state how the costs of the determination will be borne. The notice will be binding on the parties. However, either party will be entitled to appeal to the High Court any error of law arising out of the decision.

4. OUTGOINGS

4.1. The Tenant must punctually pay:

4.1.1. all rates as defined in the Local Government (Rating) Act 2002 and any other rates, charges, levies, assessments, duties, impositions and fees from time to time payable to any Authority in respect of the Land if so required by the Council; and

4.1.2. all charges for electricity, gas, water and any other service or utility charges addressed to either the Council or the Tenant for the Land.

4.2. Where any of the above outgoings above are not levied wholly in respect of the Land or the Term then the Tenant is only obliged to pay a fair proportion of such outgoings depending on the period during which and the area over which the outgoing has been charged.

5. GST

5.1. The Tenant must pay all GST on the Rent and other payments made by the Tenant under this Lease either to the Council or as the Council directs. The

GST on the Rent shall be payable on each occasion when the Rent falls due for payment and in respect of any other payment shall be payable on demand.

- 5.2.** If the Tenant defaults in payment of Rent or any other payment due under this Lease and the Council becomes liable to pay additional GST or penalty tax, the Tenant must on demand pay the additional GST or penalty tax.

6. DEFAULT INTEREST

- 6.1.** If the Tenant fails to pay any Rent or other money payable under this Lease for 10 Working Days after the due date for payment or (if there is no due date) on the date of the Council's demand, then the Tenant must on demand pay interest at the Default Interest Rate on the money unpaid from the due date or the date of the Council's demand (as the case may be) to the date of payment.

7. AUTHORISED USE

- 7.1.** The Tenant must only use the Land for the Authorised Use.
- 7.2.** The Tenant must not erect, paint, display or allow on the Land any signs, notices or advertising material unless the Tenant first obtains the written approval of the Council in each case.

8. CONDUCT ON THE LAND

- 8.1.** The Tenant must not use or permit the Land or Buildings or any part of the Land or Buildings to be used for any activity which is or may become dangerous, offensive, noxious, noisy, illegal or immoral, or which is or may become a nuisance or annoyance to the Council or to the owners and occupiers of neighbouring properties.
- 8.2.** The provision of all such services to the Land as shall be required by the Tenant will be the responsibility of the Tenant.
- 8.3.** The Tenant must not use or permit the Land or Buildings or any part of the Land or Buildings to be used for training flights in connection with the Air Ambulance Services that the Tenant is to provide. All training flights must be conducted at a site located outside of Whangarei Airport.

- 8.4.** The Tenant must not use or permit the Land or Buildings or any part of the Land or Buildings to be used in a manner, or to a degree, which does not comply with all relevant statutory and regulatory requirements, including the provisions in the Whangarei Operative District Plan that apply to Whangarei Airport and relevant provisions in the Resource Management Act 1991.

9. SPECIAL AIRPORT PROVISIONS

THE Tenant covenants that:

- 9.1.** It is aware of the provisions of the Act and the Whangarei Airport Act 1963 and further acknowledges that it is aware that the Council may terminate this lease at any time in respect of the whole of the Land or as to a part thereof if the Council requires the Land or part thereof for the purposes of Whangarei Airport;
- 9.2.** It will not use the Land or any part thereof or any buildings erected thereon in any manner so as to interfere with the use of Whangarei Airport or any part thereof;
- 9.3.** In the event that the Council terminates this Lease either in whole or in part because the Council requires the Land or part thereof for the purposes of Whangarei Airport then the Tenant shall be entitled to a payment of compensation by the Council on the termination of the Lease whether in whole or in part in relation to the improvements effected by the Tenant during the term of the Lease.
- 9.4.** The compensation for improvements effected by the Tenant to be paid by the Council shall be such amount as may be agreed upon between the Council and the Tenant or, failing agreement be such amount as may be determined by arbitration in the manner set out in clause 20 of this Lease.
- 9.5.** It shall be liable to erect or maintain or contribute towards the cost of the erection or maintenance of any dividing or boundary fence or portion thereof between the Land and any adjoining land which is the property of the Council should any request, demand or order be made requiring any dividing or boundary fence to be erected or maintained howsoever.

10. INSURANCE

- 10.1.** The Tenant acknowledges for the purposes of section 271(1) of the Property Law Act 2007 that the Council has not insured the Land or the Buildings or Improvements against destruction or damage to the Land and the Buildings and Improvements. Any insurance that the Council does elect to effect will only be to the extent, with such excess, under the type of policy and on the terms and conditions that the Council from time to time considers appropriate at its absolute discretion.
- 10.2.** The Tenant must at all times during the Term maintain the following insurances:
- 10.2.1.** Public liability insurance (which includes a tenant's liability clause) for at least the Minimum Public Liability Insurance (being the amount which may be paid out arising from any single accident or event), or any higher amount the Council reasonably requires;
 - 10.2.2.** Insurance for the Buildings and Improvements on a full replacement and reinstatement basis against destruction or damage by fire, flood, explosion, lightning, storm, earthquake or volcanic activity and any other risks which Council reasonably requires to be insured against;
 - 10.2.3.** Replacement of all glass in the Land, Buildings and Improvements; and
 - 10.2.4.** Contents Insurance.
- 10.3.** The Tenant's insurance will be on terms and conditions and with a reputable insurer of which the Council reasonably approves. The Tenant will provide the Council with proof of the insurance and the terms of it on the Commencement Date and every 12 months from the Commencement Date. The insurance will be in the joint names of the Council and the Tenant for their respective interests.
- 10.4.** Whenever the Council requests it to, the Tenant will provide the Council with a copy of the insurance policy for the insurance it must maintain, plus evidence that the Tenant has paid the premium.

11. DAMAGE TO OR DESTRUCTION OF THE LAND

11.1. If the Land, Building or Improvements are damaged or destroyed, the Tenant must meet the cost of making good the damage or destruction to the Land or the Building or Improvements and must indemnify the Council against such costs in any of the following circumstances:

11.1.1. (for the purposes of section 271(2) of the Property Law Act 2007) to the extent that:

- (a) the damage or destruction arises from an Excepted Event; and
- (b) at the time when the damage or destruction occurs, the Council is not, in fact, entitled to be indemnified under a policy of insurance for the whole or any part of the destruction or damage; or

11.1.2. where the destruction or damage was intentionally done or caused by the Tenant or the Tenant's agent; or

11.1.3. where the destruction or damage was the result of an act or omission by the Tenant or the Tenant's agent that:

- (a) occurred on or about the Land and Building or on or about the whole or any part of the Reserve; and
- (b) constitutes an indictable offence within the meaning of the Summary Proceedings Act 1957; or

11.1.4. where any insurance moneys that would otherwise have been payable to the Council for the destruction or damage are irrecoverable because of the act or omission of the Tenant or the Tenant's agent.

12. BUILDING WORK

12.1. The Tenant may not erect, alter, reinstate, extend, paint or redecorate any Building or Improvement without:

12.1.1. first supplying the Council with detailed plans and specifications and a building project programme; and

- 12.1.2.** obtaining the prior written approval of the Council as landowner.
- 12.2.** The Council will not withhold its consent arbitrarily or unreasonably under clause 13.1.2 if the proposed Building Work:
- 12.2.1.** will not in the opinion of the Council overload or endanger the proper working of any services, utilities or amenities;
 - 12.2.2.** will be carried out under the supervision of an architect, project manager, engineer or other suitably qualified person; and
 - 12.2.3.** is, in the opinion of Council, associated with and necessary for the Authorised Use or otherwise in the public interest.
- 12.3.** If the Council as landowner gives its approval under clause 12.1.2 then the Tenant must promptly complete the Building Work in a proper and workmanlike manner in accordance with the approved plans and specifications and all approvals, permits and consents.
- 12.4.** The Tenant must obtain all consents required under the Building Act 2004 ("Building Act") and the Resource Management Act 1991 and provide the Council (as landowner) with a copy of those consents. Approval of the Council under clause 12.1.2 will not be deemed to affect the Council's duties as a regulator as to those statutory consents.
- 12.5.** In granting consent or approval under this clause 12 the Council will not be deemed to have warranted that the plans or specifications are suitable for the Tenant's purposes or that any person involved in the work is suitable or adequately qualified.
- 12.6.** During the construction of the Building Work the Tenant must maintain, in the joint names of the Council and the Tenant for their respective interests, builders' risk and public liability insurance for amounts approved by the Council and will provide the Council with a copy of the policies. All Building Work is at the sole risk of the Tenant.
- 12.7.** If during the course of the Building Work the Council reasonably considers the Tenant is failing to adhere to the approved plans or specifications, the project programme, the standards referred to in clause 12.2.2, or reasonably considers that the project is not being properly managed, the Council may by notice in writing to the Tenant require that all work stop

immediately, or require it to take other action as necessary to mitigate the Council's concerns.

- 12.8.** On completion of the Building Work, the Tenant must provide the Council with a copy of the code compliance certificate under the Building Act 2004 and a complete set of drawings accurately showing the Buildings and Improvements as constructed or altered.
- 12.9.** If in, or to enable, the construction of any Building Work by the Tenant on the Land any new or upgraded infrastructure is required to be installed at Whangarei Airport to facilitate that construction or any new or upgraded infrastructure is required to enable the use of the Buildings so constructed by the Tenant then such new or upgraded infrastructure shall be installed at the cost of the Tenant.

13. MAINTENANCE OF BUILDING/IMPROVEMENTS

- 13.1.** The Tenant must keep and maintain the Land and all Buildings (both the exterior and the interior) and Improvements on the Land in good, clean, and substantial order, repair and condition. The Tenant will do this to the satisfaction of the Council.
- 13.2.** The Tenant must remove any externally visible graffiti from any Buildings or Improvements on the Land within 5 days of any defacement occurring.
- 13.3.** The Tenant shall ensure that the Land is left in clean order repair and condition at the end or earlier determination of the Term and will quietly yield up the Land in clean order repair and condition. The Tenant shall not be liable for fair wear and tear arising from reasonable use.

14. REMOVAL OF BUILDING/IMPROVEMENTS

- 14.1.** The Tenant may not pull down or remove any Buildings or Improvements on the Land without first obtaining the written consent of the Council.
- 14.2.** At the end of this Lease, having regard to the condition and safety of the Land and the Building and Improvements thereon the Council will have the following rights with respect to the Buildings and Improvements the Tenant has constructed or made:
 - 14.2.1.** Where all or some of the Buildings and Improvements erected by the Tenant are of value to the Council, the Council may pay the

Tenant the value of such of the Buildings and Improvements as are of value to it. This value is to be agreed by the parties or if they cannot agree it is to be determined in accordance with clause 14.2.4. Whether the Buildings and Improvements are considered to be of value to the Council for the purpose of this sub-clause is entirely a matter for the Council's discretion and not a matter for dispute between the parties.

- 14.2.2.** the Council may make the Land, Building and Improvements available to another community group approved by the Council, in which case the Council will require any incoming tenant of the Land to pay to the Tenant the value of the Tenant's Building and Improvements. This value, or amount to be paid, is to be agreed by the parties or if they cannot agree, it is to be determined in accordance with clause 14.2.4.
- 14.2.3.** the Council may require the Tenant on written notice from the Council to remove all or some of the Tenant's Buildings and Improvements, in which case the Tenant will, within a reasonable time as stipulated in the notice, and in the manner stipulated in that notice, remove all such of the Buildings and Improvements as are identified in the written notice from the Council and repair any damage caused to the Land by that removal, and if this is not done within the stipulated time or in the stipulated manner then the Council may remove the same and repair the Land at the cost in all respects of the Tenant.
- 14.2.4.** Where under clause 14.2.1 or 14.2.3 the parties cannot agree on the value of the Tenant's Buildings and Improvements which are of value to the Council or which are to be made available to an incoming tenant of the Land within 10 Working Days of Council giving notice of its intention under clause 14.2.1 or 14.2.3:
 - (a) Each party will within a further 10 Working Days appoint a registered valuer to act as an expert for the purpose of determining the value of the Buildings and Improvements. The valuers will appoint an umpire who need not be a registered valuer before determining the value of the Buildings and Improvements. Where the valuers cannot

agree on the value, the umpire will make the final determination.

- (b) If an incoming tenant or Council (as applicable) is not prepared to pay the value as determined under clause 14.2.4(a), Council may instead elect to give a notice to the Tenant requiring the Tenant to remove its Building and Improvements under clause 14.2.2.

- 14.3.** At the end of this Lease, the Council may remove from the Land any chattels in the apparent possession of the Tenant and place them outside the Land and the Council shall not be answerable for any loss resulting from the exercise of the power of re-entry.

15. ACTS, REGULATIONS, BY-LAWS AND RULES

- 15.1.** The Tenant must comply with all statutes, regulations, bylaws, rules and requisitions, District and Regional Plan Rules as they affect the Land and the Tenant's use of the Land.

- 15.2.** Where any Building requires a compliance schedule under the Building Act the Tenant shall at its own cost fully comply with all obligations imposed under the Building Act including but not limited to:

- 15.2.1.** complying with any requirements specified in any compliance schedule issued by the Council in its regulatory capacity;

- 15.2.2.** ensuring the Building has at all times a current building warrant of fitness and obtaining any written reports relating to compliance with the compliance schedule;

- 15.2.3.** complying with any notices issued by the Council in its regulatory capacity under the Building Act.

- 15.3.** The Tenant shall at all times display at a place in the Building to which users of the Building have ready access, a copy of the current building warrant of fitness showing the location of the compliance schedule.

- 15.4.** The Tenant shall make available to the Council in its capacity as Landlord:

- 15.4.1.** prior to the annual anniversary of the issue of the compliance schedule a copy of the compliance schedule together with any

written reports relating to compliance with the compliance schedule; and

- 15.4.2.** on every subsequent annual anniversary a copy of the building warrant of fitness for the Building together with any written reports relating to compliance with the compliance schedule.

16. COUNCIL'S RIGHTS OF ENTRY TO INSPECT AND REPAIR

- 16.1.** The Tenant must allow the Council or any person authorised by the Council at all reasonable times on to the Land and inside Buildings to inspect them or to carry out any works which are not the responsibility of the Tenant.
- 16.2.** If the Council gives the Tenant notice of failure to do repairs required by this Lease, the Tenant must carry out work with all speed and complete the work in a diligent and workmanlike manner.
- 16.3.** If the Tenant fails to comply with clause 16.2 then the Council is entitled to enter the Land and carry out the work and the Tenant must pay the cost of that work on demand.

17. ASSIGNMENT AND SUBLETTING

- 17.1.** The Tenant must not assign, mortgage, charge, sublease or part with possession of the Land, Building or Improvements or any part of the Land, Building or Improvements or the Tenant's interest in this Lease.

18. DEFAULT

- 18.1.** The Council may (in addition to the Council's rights to apply for an order for possession or any other rights or remedies at law) cancel this Lease by immediately or thereafter re-entering the Land:
- 18.1.1.** if the Rent is in arrears 10 Working Days after the due date to pay any instalment of the Rent and the Tenant has failed to remedy that breach within 10 Working Days after service on the Tenant of a notice in accordance with section 245 of the Property Law Act 2007; or
- 18.1.2.** in the case of breach by the Tenant of any covenant or agreement on the Tenant's part herein expressed or implied (other than the covenant to pay Rent) after the Tenant has failed to remedy that

breach within the period specified in a notice served on the Tenant in accordance with section 246 of the Property Law Act 2007;

and the Term shall terminate on such cancellation, but without prejudice to the rights of either party against the other.

18.2. It shall be a breach of this Lease if the Tenant:

18.2.1. being a company or incorporated body:

- (a) is or is deemed to be unable to pay its debts under section 287 of the Companies Act 1993; or
- (b) goes into liquidation (other than voluntary liquidation for the purpose of reconstruction or amalgamation approved in writing by the Council); or
- (c) is wound up or dissolved; or
- (d) enters into any assignment or other compromise or scheme of arrangement with its creditors or any class of its creditors; or
- (e) has a receiver, manager or receiver and manager appointed in respect of any of its assets; or

18.2.2. being an unincorporated association or trust, is wound up, dissolved or becomes defunct.

18.3. The Council may without being under any obligation to do so remedy at the Tenant's cost any default by the Tenant under this Lease.

18.4. The Tenant's breach of the following terms is a breach of an essential term of this Lease:

18.4.1. the covenant to pay Rent or other money payable by the Tenant under this Lease;

18.4.2. the terms prohibiting assignment or subleasing;

18.4.3. the terms restricting use of the Land; and/or

18.4.4. the terms dealing with erecting, altering, reinstating, extending, pulling down or removing any Building or Improvement.

18.5. The Council's acceptance of any arrears of Rent or other money payable under this Lease is not a waiver of the essential obligation to pay any other Rent or other money payable under this Lease.

19. COMPENSATION AND INDEMNITY

19.1. If any act or omission of the Tenant:

19.1.1. is a repudiation of this Lease or of the Tenant's obligations under this Lease; or

19.1.2. is a breach of any of the Tenant's obligations under this Lease;

the Tenant must compensate the Council for the loss or damage suffered by reason of the repudiation or breach during the whole of the Term.

19.2. The Council's entitlement to recover damages will not be affected or limited by:

19.2.1. the Tenant abandoning or vacating the Land, the Council electing to re-renter or to terminate this Lease;

19.2.2. the Council electing to re-enter or to terminate this Lease; or

19.2.3. the Council accepting the Tenant's repudiation; or

19.2.4. the parties' conduct constituting a surrender by operation of law.

19.3. The Tenant indemnifies the Council against all actions, proceedings, calls, costs, claims, demands, losses, damages, expenses and liabilities of any kind suffered or incurred by the Council resulting from any act or omission of the Tenant or the Tenant's Agents.

19.4. The indemnity in clause 19.3 will not apply to damage to or destruction to the Land and Buildings to the extent that section 269 of the Property Law Act 2007 applies and is not overridden by the operation of clauses 11.1 and 12 of this Lease.

20. DISPUTE RESOLUTION

- 20.1.** If any dispute arises between the Council and the Tenant concerning this Lease, the parties will try in good faith to settle the matter by negotiation, and if that is unsuccessful by mediation.
- 20.2.** If the dispute cannot be settled by negotiation or mediation, it will be referred to arbitration (under clause 20.3).
- 20.3.** The dispute will be referred to a sole arbitrator if the parties agree upon one, and if not then the dispute will be referred to an arbitrator appointed by the then President or Vice President of the New Zealand Law Society.
- 20.4.** The Arbitration Act 1996 will govern the arbitration and the arbitral award will be final and binding on the parties. However, either party is entitled to appeal to the High Court on any error of law arising out of the award.

21. NATURE OF THE COUNCIL

- 21.1.** The Council has signed this Lease as the owner of the Land. The Council is also the territorial authority for the area in which the Land is situated. Nothing in this Lease limits or affects the duties and obligations of the Council as a regulatory authority under the Resource Management Act 1991, the Building Act or any other statute. The Council will not be liable for any expenses, costs, loss, or damage the Tenant, or any person claiming through the Tenant, suffers or incurs because of the Council lawfully carrying out its statutory duties.
- 21.2.** Where this Lease requires the Tenant to obtain any consent or approval of the Council, the Council will grant that consent or approval in its capacity as the owner of the Land only. The Tenant must separately obtain through the relevant department of the Council any consent or approval it requires from the Council acting as regulatory authority. Similarly, any consent or approval the Tenant obtains from the Council acting as territorial authority, does not constitute the consent of the Council in its capacity as the owner of the Land.
- 21.3.** Where the Tenant wants to give a notice to or otherwise communicate with the Council, the Tenant must address the notice to, or otherwise deal with the department of the Council from time to time charged with administering this Lease. A notice the Tenant sends that has not been addressed to that

department will have no effect and will not have been given, until it has been actually received by that department. Any consent, approval or other permission obtained from any other department will not be binding on the Council.

22. IMPLIED PROVISIONS

- 22.1.** The covenants and provisions implied in Leases by the Property Law Act 2007 and the Land Transfer Act 2017 will apply to this Lease except to the extent they are inconsistent with the terms of this Lease.
- 22.2.** The Tenant will not call for this Lease to be registered, or lodge a caveat against the title to the Land.

23. COSTS

- 23.1.** The Tenant must pay all the Council's and its own legal costs and expenses for the preparation, completion and execution of this Lease or variation of it (including any variation recording a rent review) and all costs incurred by the Council in exercising any rights and remedies because of any default by the Tenant.

24. NO WAIVER

- 24.1.** The Council's waiver or failure to act in response to the Tenant's breach of any of the Tenant's obligations in this Lease will not operate as a waiver of the same breach on any later occasion, or any other breach of this Lease.

25. NOTICES

- 25.1.** Any notice or document required or authorised to be delivered or served under this Lease may be delivered or served:
 - 25.1.1.** In any manner prescribed in Part 7 of the Property Law Act 2007 for the type of notice being served; or
 - 25.1.2.** By facsimile where permitted by the Property Law Act 2007 for a notice of its type.
- 25.2.** Any notice or other document will be treated as delivered or served and received by the other party:
 - 25.2.1.** On personal delivery;

25.2.2. Three days after being posted by prepaid registered post; or

25.2.3. on completion of an error free transmission, when sent by facsimile.

25.3. Any notice or document to be delivered or served under this Lease must be in writing and signed by:

25.3.1. Any attorney, officer, employee or solicitor for the party serving or giving the notice; or

25.3.2. The party serving the notice or any other person authorised by that party.

25.4. Clauses 25.3 and 25.4 apply to any notice or communication from the Tenant to the Council.

26. OPERATIONAL CONDUCT OF TENANT'S ACTIVITIES

26.1. Further to the covenants of the Tenant hereunder the Tenant further covenants with the Council as follows:

26.1.1. The Tenant will establish and then comply with a Fly Neighbourly Programme such to be generally in a format similar to that adopted by the Northland Emergency Services Trust for the Airport Rescue Service that it previously operated from Kensington Park.

26.1.2. The Tenant will meet its obligations and covenants that it has committed to with the Council pursuant to the operational agreement containing commitments to reduce noise while undertaking its activities such being dated the same date as this lease.

26.2. In undertaking its activities the Tenant:

26.2.1. is committed to the reduction in noise that its operations from the Land will produce and to that end will negotiate with the Council over matters relating to noise reduction such including, although not limited to, removing all training flights from Whangarei Airport;

- 26.2.2.** will comply with noise abatement procedures wherever practicable;
 - 26.2.3.** will comply with any approved Airport Noise Management Plan such including requirements for maintenance and testing, wherever practicable;
 - 26.2.4.** will limit its aircraft/helicopter operation to a maximum of two operational and one reserved back up aircraft; and
 - 26.2.5.** will not conduct training operations at Whangarei Airport provided always that flights may depart from and return to the Airport for the purposes of training at an alternative site provided further that practising simulated aircraft malfunctions on departure or arrival will only be permitted if such exercises have no impact on the standard flight path and time taken to arrive or depart.
- 26.3.** The Tenant acknowledges that the Council is to take an advocacy role on the:
- 26.3.1.** timing of investment in new aircraft it being accepted that this would not be a matter of a Council decision; and
 - 26.3.2.** centralisation and co-ordination of flights by the Tenant in its use of Whangarei Airport.
- 26.4.** The Tenant acknowledges that under sections 16 and 17 of the Resource Management Act 1991 it is required as an occupier of the Land to adopt the best practicable option to ensure that the emission of noise from the land does not exceed a reasonable level, and has a duty to avoid, remedy or mitigate any adverse effect of the environment arising from the activities carried out by it or on its behalf.
- 26.5.** The development of all facilities on the Land as shown on the plan are to be undertaken by the Tenant at its cost with all carparking and hardstand areas to be constructed to the standard(s) required by Council.

27. CANCELLATION UPON RELOCATION OF AIRPORT

- 27.1.** Notwithstanding any other provision in this lease in the event that the Council decides to relocate Whangarei Airport this lease shall be

determinable by notice given pursuant to clause 25 of this lease providing always that two (2) year's notice of termination will be given.

28. NOISE SHIELDING

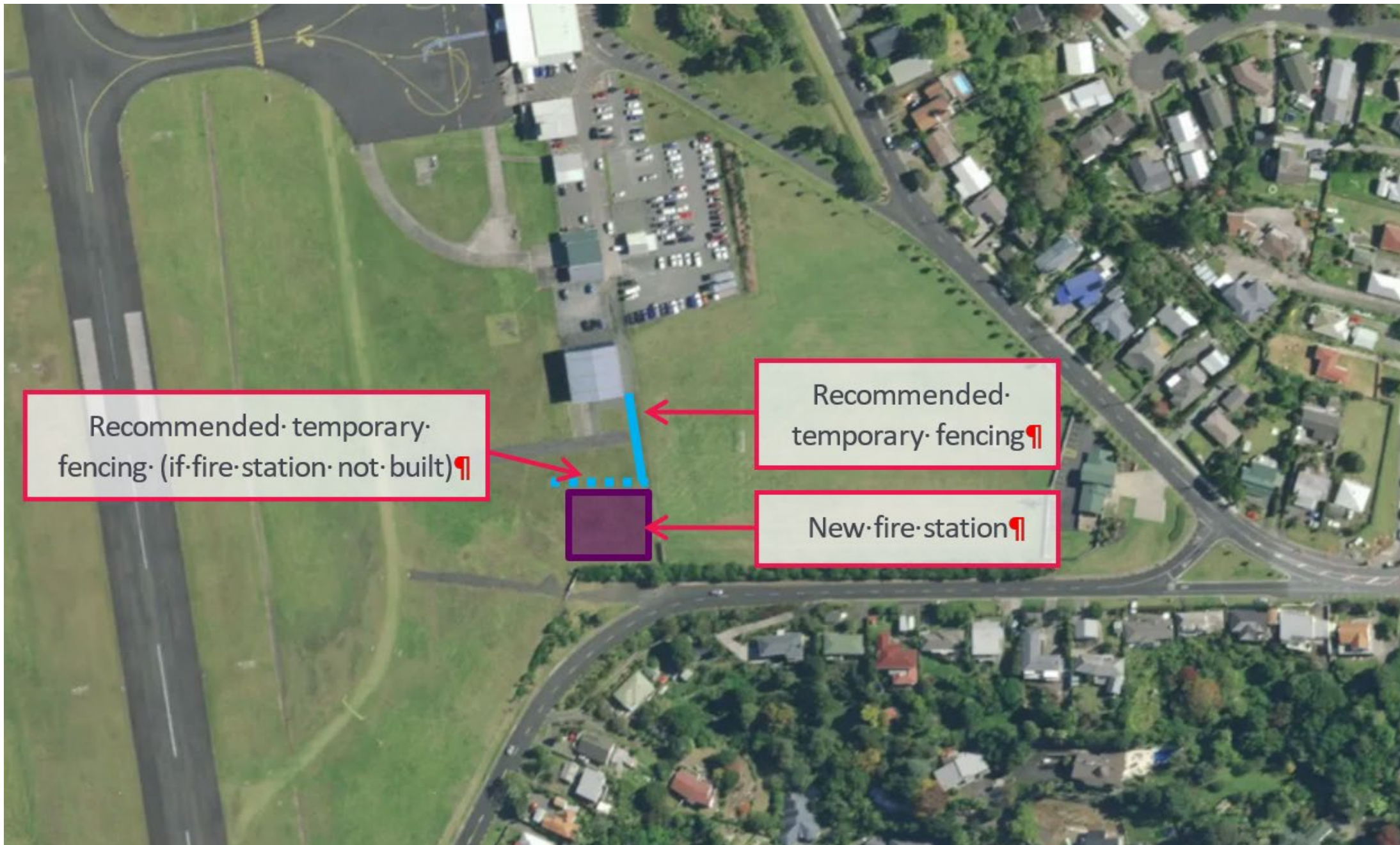
- 28.1.** The Tenant shall upon the commencement date of this lease be responsible for the construction of a noise protection fence along such parts of the airport, including the boundary of its site as is leased from Council at Whangarei Airport, it being accepted that the solid walls of buildings will of themselves in part constitute a noise control fence, so that such fence shall constitute a barrier to control noise emissions from the leased site with such construction to be over such areas and of such dimensions as is practical but in any event to be to Council's satisfaction.
- 28.2.** In the event that the construction of the new base at Whangarei Airport is delayed beyond the Commencement Date of this lease the Tenant shall provide temporary noise impact shielding such to be by means of a solid barrier of up to 3 metres in height – it being accepted that this could be achieved by the stacking of shipping containers adjacent to each other to a height of 2 containers - with the location of such containers to be dependent upon whether the new fire station that is proposed to be built at Whangarei Airport is built in its new intended location.
- 28.3.** In the event the new fire station is located as is proposed then the solid 3 metre high noise impact wall is to be built along the boundary between Site B5 at Whangarei Airport, such being premises already leased by Council to the Tenant, and the new fire station with this location to be as shown on the attached noise impact plan marked with a solid blue line. In the event the new fire station is not built in the intended location, or is not built by the Commencement Date, then such fencing could extend along what would have been the eastern boundary of that new fire station to the extent shown by the dotted blue line on this attached noise impact plan.
- 28.4.** Council reserves the right to annually or at their discretion, review the provision and extent of this temporary noise impact shielding and in the event that the Tenant extends its occupation of the Land for longer than three (3) years can require the Tenant upon three (3) month's notice to construct a permanent noise impact shielding solution such to be of such standard as Council shall direct.

Annex to Lease

Area approximately 3600m²



NOISE IMPACT PLAN



AGREEMENT made this _____ day of _____ 2025

BETWEEN WHANGAREI DISTRICT COUNCIL ("Council")

A N D NORTHERN RESCUE HELICOPTER LIMITED ("NRHL")

BACKGROUND

- A. NRHL operates the Northland Air Rescue Helicopter Service.
- B. NRHL has previously operated from Kensington Park in central Whangarei but is moving to Whangarei Airport ("the Airport") at Onerahi, Whangarei.
- C. Council has granted NRHL leases of land at the Airport on which it can become re-established but at the same time has resolved that any such grants of lease be conditional upon NRHL entering into an operational agreement containing commitments to minimise noise while still being able to undertake its activities in a safe, **efficient and effective** manner.

AGREEMENT

- 1. In its use of land under leases from Council at the Airport NRHL covenants that it shall at all times:
 - (a) undertake its activities taking into account concerns of neighbouring residents as to the potential for noise to be generated from its activities;
 - (b) reduce noise effects wherever reasonably possible;
 - (c) not undertake flight training activities, it being accepted that transit to and from the Airport would still occur for training
 - (d) have its own Fly Neighbourly Programme ("Programme"), engaging with Council's Airport Noise Management Committee ("ANMC") in reviewing the programme on an annual basis;
 - (e) when reviewing future options for replacement aircraft consider aircraft with lower noise emissions;
 - (f) develop an authorization procedure for late night ground runs, when required for emergency situations;
 - (g) comply with all applicable noise abatement procedures where that can be done without affecting the safe, **efficient and effective** service provided by NRHL;

- (h) comply with any Airport Noise Management Plan ("ANMP") including any requirements or specifications within such a plan providing for maintenance and testing whenever possible
 - (i) comply with all statutory, regulatory and other governmental controls regulating its activities and in particular governing noise; and
 - (j) engage in good faith with Council and the ANMC.
2. For the purposes of compliance with the covenants set out in clause 1 of this agreement NRHL will develop a Fly Neighbourly Programme ("the Programme"), such to generally in a format similar to that adopted by the Northland Emergency Services Trust in its airport rescue service as operated from Kensington Park, Whangarei, by which NRHL will operate with the Programme to include (inter alia) requirements that NRHL will:
- (a) operate so as to minimize the effects of noise generated by its activities on residents at Onerahi, Whangarei living in proximity to the Airport;
 - (b) ensure its operations are undertaken in accordance with the Programme, and any approved ANMP wherever possible;
 - (c) ensure its pilots are trained, with appropriate refresher courses where necessary, in the content of the Plan and any approved, or from time to time amended, ANMP on an annual cycle;
 - (d) ensure its operatives comply wherever possible with the Programme and any approved, or from time to time amended, ANMP on an ongoing basis;
 - (e) ensure that all training is conducted away from the Airport provided always that flights to and from the Airport are permissible to conduct such training flights with any practicing of simulated aircraft malfunctions on departure or arrival being only permitted if such exercise(s) has no impact on the standard flight path and time taken to arrive or depart; and
 - (f) all instrument approaches flown for training are not to overfly the aerodrome itself but will remain at least .5 nautical miles seawards of the shoreline unless established on the runway centre line with the intention of landing.
3. The ANMP and the Programme will be regularly reviewed by NRHL in conjunction with Council and Council's ANMC

and Programme and, where possible and necessary, review both and, where appropriate, adjust flight operations to minimise noise pollution and noise effects on the Onerahi community wherever reasonably possible.

4. Council will, in consideration of NRHL's covenants, work with Council's ANMC, in conjunction with NRHL, to update the ANMP on an annual review basis.
5. In its operations at the Airport NRHL shall be limited to a maximum of two operational aircraft with one reserve/backup aircraft only, excluding aircraft in maintenance.
6. NRHL shall at the time of the occupation of its base at Whangarei Airport construct a noise protection fence along such parts of the airport, including the boundary of its site as is leased from Council at Whangarei Airport, it being accepted that the solid walls of buildings will of themselves in part constitute a noise control fence, so that such fence shall constitute a barrier to control noise emissions from the leased site with such construction to be over such areas and of such dimensions as is practical but in any event to be to Council's satisfaction.
7. This agreement does not in any way effect or limit the obligations of NRHL as lessee under the leases by which Council leases land at the Airport to NRHL.
8. Nothing herein will derogate from the obligations of NRHL to comply with the relevant requirements under the Whangarei District Plan, the Resource Management Act 1991 ("RMA 91"), any legislation that replaces the RMA 91 if that Act is repealed, and any rules, regulations or other subordinate legislation made under the RMA 91 or any legislation that replaces the RMA 91.

EXECUTED as a deed:

SIGNED for and on behalf of
WHANGAREI DISTRICT COUNCIL

By

Authorised Officer

In the presence of:

Witness to complete in BLOCK letters

Name:

Address:

Occupation:

SIGNED by
NORTHERN RESCUE HELICOPTER
LIMITED in the presence of:

Witness

Signature: _____

Name (in full) _____

Occupation: _____

Address: _____

We have been asked to consider what potential screening may do to reduce NEST noise impacts with the temporary relocation of the service to Whangarei Airport.

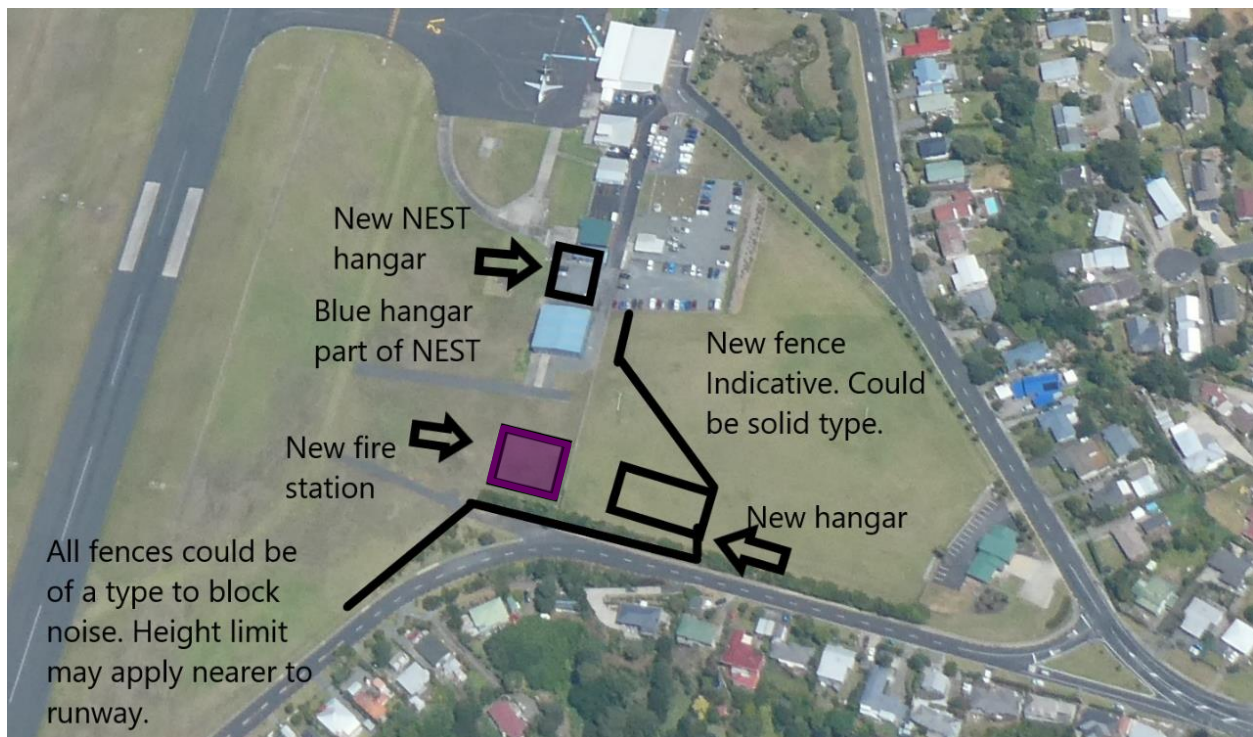
We have considered both the original mitigation option (June 2022) and a slight refinement option provided to us in May 2025.

We compared both of these options to the scenario where no further mitigation is provided, and the airfield infrastructure remains unaltered (i.e. the existing situation).

The original proposed NEST screening and NEST hangar was modelled in June 2022 and is detailed in Mm001 20220239. The proposed screening/fencing and buildings are shown below in Figure 1. We modelled the proposed buildings at 8m high and the fence at 3m.

The refined option (May 2025) includes only the fire station building, and no discrete barriers/fencing (unless required) or the previously proposed NEST Hangar. There is also a refinement to the location for NEST standard ground movements and flight lines.

Figure 1: Original proposed NEST screening and new buildings



Noise impact comparison

In our review we have also considered what the noise impacts would be if no additional buildings or screening were built and rather that the airfield infrastructure remains unaltered. (i.e., the difference between the two options proposed and the existing situation).

For most dwellings surrounding the airport the change in noise level between the two proposed options and the current layout, will be zero or small. For most locations, there will be a small decrease in noise level of up to 3 – 4 dB. This is just perceptible to the human ear and is not a significant increase.

The new location for the NEST flight line and ground movements, which is now likely to be located directly to the east of the Blue Hangar means some dwellings on Handforth Street, will receive a significant increase in noise level. This is also likely to be the case for some dwellings on Church Street (to the north)

Therefore, we recommend including some limited temporary screening for these residents. An option that could be implemented to achieve this would be shipping containers, but care to ensure they perform as

expected would be required. This is shown in blue on the figure below. This will provide a significant reduction in noise for those on Handforth Street and north Church Street. If the proposed fire station is not built, we have shown extra recommended temporary fencing in the figure in dotted blue.

For other residents living directly to the east of the base, this screening may have some additional limited benefit as well, however not to any significant extent.

Figure 2: Current proposed option (new fire station) and a recommended location of temporary fencing



RESOLUTION TO EXCLUDE THE PUBLIC**Move/Second**

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential minutes of the Whangarei District Council meeting held on 22 May 2025	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Council Controlled Trading Organisation Appointments		
1.3	Airport Location Study Outcomes		
1.4	Carpark Future Use		
1.5	Draft Memorandum of Understanding		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes.	
1.2	To protect the privacy of natural persons including that of a deceased person.	S7(2)(a)
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations). To prevent the disclosure or use of official information for improper gain or improper advantage.	S7(2)(i) S7(2)(j)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	S7(2)(i)
1.5	To maintain legal professional privilege.	S7(2)(g)

Resolution to allow members of the public to remain

If the Council wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

“That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.